

CHAPTER 45.

An Act to amend the Public Libraries Consolidation (Scotland) Act, 1887. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Increase of rating limit, and provisions as to audit of accounts.

50 & 51 Vict. c. 42.

1.—(1) From and after the fifteenth day of May, nineteen hundred and twenty, section eight of the Public Libraries Consolidation (Scotland) Act, 1887, shall have effect, and shall be deemed to have had effect, as if for the words "one penny" therein occurring there were substituted the words "three pence," and the accounts of the committee appointed under that Act shall be audited as part of the accounts of the rating authority, or, in the case of a combination of burghs or parishes for the purposes of the said Act, as part of the accounts of the rating authority making the largest contribution to the expenses of the committee.

(2) Notwithstanding anything in section thirty of the Public Libraries Consolidation (Scotland) Act, 1887, a library committee may, before such date in the current financial year as may be fixed by the town council or the parish council (as the case may be), make a supplementary estimate of the sums required for the purposes mentioned in the said section, and, on such estimate being reported to the town or parish council, the council shall act upon such estimate as if it were an estimate reported in terms of the said section.

Short title and citation. 57 & 58 Vict. c. 20. 62 & 63 Vict. c. 5.

2. This Act may be cited as the Public Libraries (Scotland) Act, 1920, and the Public Libraries (Scotland) Acts, 1887 and 1894, the Public Libraries (Scotland) Act, 1899, and this Act, may be cited together as the Public Libraries (Scotland) Acts, 1887 to 1920.

CHAPTER 46.

An Act to regulate the Importation, Exportation, Manufacture, Sale and Use of Opium and other Dangerous Drugs. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

RAW OPIUM.

1. It shall not be lawful for any person to import or bring into the United Kingdom any raw opium except under licence and into approved ports. Restriction on importation of raw opium.

2.—(1) It shall not be lawful for any person to export from the United Kingdom any raw opium except under licence and from approved ports and except in packages marked in the prescribed manner with an indication of the contents thereof. Restriction on exportation of raw opium.

(2) If at any time the importation of raw opium into a foreign country is prohibited or restricted by the laws of that country, there shall, while that prohibition or restriction is in force, be attached to every licence which is issued by a Secretary of State under this Act authorising the export of raw opium from the United Kingdom, such conditions as appear to him necessary for preventing or restricting, as the case may be, the exportation of raw opium from the United Kingdom to that country during such time as the importation of raw opium into that country is so prohibited or restricted, and any such licences issued before the prohibition or restriction came into force shall, if a Secretary of State by order so directs, be deemed to be subject to the like conditions.

3. Provision may be made by regulations for controlling or restricting the production, possession, sale and distribution of raw opium, and in particular, but without prejudice to the generality of the foregoing power, for prohibiting the production, possession, sale or distribution of raw opium except by persons licensed or otherwise authorised in that behalf. Power to regulate the production of and dealing in raw opium.

PART II.

PREPARED OPIUM.

4. It shall not be lawful for any person to import or bring into, or to export from, the United Kingdom any prepared opium. Prohibition of exportation or importation of prepared opium.

5. If any person—

- (a) manufactures, sells or otherwise deals in prepared opium; or
 - (b) has in his possession any prepared opium; or
 - (c) being the occupier of any premises permits those premises to be used for the purpose of the preparation of opium for smoking or the sale or smoking of prepared opium; or
 - (d) is concerned in the management of any premises used for any such purpose as aforesaid; or
- Penalty for manufacturing, selling, using, &c., prepared opium.

- (e) has in his possession any pipes or other utensils for use in connection with the smoking of opium or any utensils used in connection with the preparation of opium for smoking; or
 - (f) smokes or otherwise uses prepared opium, or frequents any place used for the purpose of opium smoking;
- he shall be guilty of an offence against this Act.

PART III.

COCAINE, MORPHINE, &c.

Restriction on
import and
export of
cocaine, &c.

6. It shall not be lawful to import or bring into, or to export from, the United Kingdom any drug to which this Part of this Act applies except under licence.

Control of
manufacture
and sale of
cocaine, &c.

7.—(1) For the purpose of preventing the improper use of the drugs to which this Part of this Act applies, provision may be made by regulations for controlling the manufacture, sale, possession and distribution of those drugs, and in particular, but without prejudice to the generality of the foregoing power, for—

- (a) prohibiting the manufacture of any drug to which this Part of this Act applies except on premises licensed for the purpose and subject to any conditions specified in the licence; and
- (b) prohibiting the manufacture, sale or distribution of any such drug except by persons licensed or otherwise authorised under the regulations and subject to any conditions specified in the licence or authority; and
- (c) regulating the issue by medical practitioners of prescriptions containing any such drug and the dispensing of any such prescriptions; and
- (d) requiring persons engaged in the manufacture, sale or distribution of any such drug to keep such books and furnish such information either in writing or otherwise as may be prescribed.

(2) The regulations under this section shall provide for authorising any person who lawfully keeps open shop for the retailing of poisons in accordance with the provisions of the Pharmacy Act, 1868, as amended by the Poisons and Pharmacy Act, 1908,—

31 & 32 Vict.
c. 121.
8 Edw. 7.
c. 55.

- (a) to manufacture at the shop in the ordinary course of his retail business any preparation, admixture, or extract of any drug to which this Part of this Act applies; or
 - (b) to carry on at the shop the business of retailing, dispensing, or compounding any such drug;
- subject to the power of the Secretary of State to withdraw the authorisation in the case of a person who has been convicted

of an offence against this Act or of an offence under the enactments relating to the customs as applied by this Act, and who cannot, in the opinion of the Secretary of State, properly be allowed to carry on the business of manufacturing or selling or distributing, as the case may be, any such drug :

Provided that the Secretary of State shall, before withdrawing the authorisation in the case of any such person consult the Council of the Pharmaceutical Society of Great Britain.

(3) Nothing in any regulations made under this section shall be taken to authorise the sale, or the keeping of an open shop for the retailing, dispensing, or compounding of, poisons by any person who is not qualified in that behalf under, or otherwise than in accordance with, the provisions of the Pharmacy Act, 1868, as amended by the Poisons and Pharmacy Act, 1908, or to be in derogation of the provisions of the Pharmacy Act, 1868, as so amended, for prohibiting, restricting, or regulating the sale of poisons.

8.—(1) The drugs to which this Part of this Act applies are morphine, cocaine, ecgonine, and diamorphine (commonly known as heroin), and their respective salts, and medicinal opium, and any preparation, admixture, extract, or other substance containing not less than one-fifth per cent. of morphine or one-tenth per cent. of cocaine, ecgonine or diamorphine.

Drugs to which Part III. applies.

For the purpose of the foregoing provision, the percentage in the case of morphine shall be calculated as in respect of anhydrous morphine.

(2) If it appears to His Majesty that any new derivative of morphine or cocaine or of any salts of morphine or cocaine or any other alkaloid of opium or any other drug of whatever kind is or is likely to be productive, if improperly used, of ill effects substantially of the same character or nature as or analogous to those produced by morphine or cocaine, His Majesty may by Order in Council declare that this Part of this Act shall apply to that new derivative or alkaloid or other drug in the same manner as it applies to the drugs mentioned in subsection (1) of this section.

PART IV.

GENERAL.

9.—(1) Articles prohibited to be imported by virtue of this Act shall be deemed to be included among the goods enumerated and described in the table of prohibitions and restrictions inwards contained in section forty-two of the Customs Consolidation Act, 1876, and the provisions of this Act relating to the prohibition of the export of articles shall have effect as though they were included in that Act, and the provisions of that Act and of any Act amending or extending that Act shall apply accordingly.

Application of Customs Acts.

39 & 40 Vict. c. 36.

(2) If any goods prohibited to be exported by virtue of this Act are exported from the United Kingdom in contravention thereof, or brought to a quay or other place to be shipped for the purpose of being so exported or of being waterborne to be so exported, the exporter or his agent shall be liable to the same penalty as that to which a person is liable under section one hundred and eighty-six of the Customs Consolidation Act, 1876, for illegally importing prohibited goods.

Powers of
inspection.

10.—(1) Any constable or other person authorised in that behalf by any general or special order of a Secretary of State shall, for the purposes of the execution of this Act, have power to enter the premises of any person carrying on the business of a producer, manufacturer, seller or distributor of any drugs to which this Act applies, and to demand the production of and to inspect any books relating to dealings in any such drugs and to inspect any stocks of any such drugs.

(2) If any person wilfully delays or obstructs any person in the exercise of his powers under this section or fails to produce or conceals or attempts to conceal any such books or stocks as aforesaid, he shall be guilty of an offence against this Act.

Regulations
to be laid
before Par-
liament.

11. Every regulation made under this Act shall be laid before each House of Parliament forthwith, and, if an address is presented to His Majesty within twenty-one days on which that House has sat next after any such regulation is laid before it praying that the regulation may be annulled, His Majesty in Council may annul the regulation and it shall thenceforth be void but without prejudice to the validity of anything previously done thereunder.

Licences.

12. Licences or authorities for the purposes of this Act may be issued or granted by a Secretary of State and may be issued or granted on such terms and subject to such conditions (including in the case of a licence the payment of a fee) as the Secretary of State thinks proper.

Offences and
penalties.

13.—(1) If any person acts in contravention of or fails to comply with any regulation made under this Act, or acts in contravention of or fails to comply with the conditions of any licence issued or authority granted under or in pursuance of this Act, he shall be guilty of an offence against this Act.

(2) Any person guilty of an offence against this Act shall be liable on summary conviction to a fine not exceeding two hundred pounds or to imprisonment with or without hard labour for a term not exceeding six months or to both such fine and imprisonment, and in the case of a second or subsequent conviction to a fine not exceeding five hundred pounds, or to imprisonment with or without hard labour for a term not exceeding two years, or to both such fine and imprisonment, and the court dealing with the case may, in addition to any other punishment, order the goods in respect of which the offence was committed to be forfeited.

(3) Any proceedings for an offence against this Act before a court of summary jurisdiction may, notwithstanding any enactment prescribing the time within which such proceedings may be brought, be brought either within the time so prescribed or within three months from the date on which evidence sufficient in the opinion of a Secretary of State to justify a prosecution for the offence comes to his knowledge, whichever is the longer, and, for the purposes of this subsection, a certificate purporting to be signed by the Secretary of State as to the date on which such evidence as aforesaid comes to his knowledge shall be conclusive evidence thereof.

In the application of this subsection to Scotland the Lord Advocate, and in the application of this subsection to Ireland the Attorney-General for Ireland, shall be substituted for a Secretary of State.

14. Any constable may arrest without warrant any person who has committed, or attempted to commit, or is reasonably suspected by the constable of having committed or attempted to commit, an offence against this Act, if he has reasonable ground for believing that that person will abscond unless arrested, or if the name and address of that person are unknown to and cannot be ascertained by him. Power of arrest.

15.—(1) In this Act, unless the context otherwise requires— Interpretation.

The expression “raw opium” includes powdered or granulated opium, but does not include medicinal opium;

The expression “prepared opium” means opium prepared for smoking and includes dross and any other residues remaining after opium has been smoked;

The expression “medicinal opium” means raw opium which has been artificially dried;

The expression “regulations” means regulations made under this Act by a Secretary of State;

The expression “prescribed” means prescribed by regulations;

The expression “approved ports” means ports approved by the Commissioners of Customs and Excise for the importation or exportation, as the case may be, of raw opium.

(2) For the purposes of this Act, any article shall be deemed to be imported under licence or exported under licence if the importer or exporter, as the case may be, is the holder of a licence issued under this Act authorising the importation or exportation, as the case may be, of the article and complies with the conditions, if any, of the licence, but not otherwise.

16. This Act in its application to Ireland shall have effect subject to the following modifications; namely,— Application to Ireland.

(a) A reference to the Poisons (Ireland) Act, 1870, the Pharmacy (Ireland) Act, 1875, and the Pharmacy 32 & 34 Vict. c. 56.

38 & 39 Vict.
c. 57.
53 & 54 Vict.
c. 48.

(Ireland) Act, 1875 (Amendment), Act, 1890, shall be substituted for any reference to the Pharmacy Act, 1868; and

- (b) A reference to the Pharmaceutical Society of Ireland shall be substituted for the reference to the Pharmaceutical Society of Great Britain.

Short title
and com-
mencement.

17.—(1) This Act may be cited as the Dangerous Drugs Act, 1920.

(2) This Act shall come into operation on the first day of September, nineteen hundred and twenty.

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## CHAPTER 47.

An Act to continue temporarily the office of Food Controller and to make further provision with respect to his powers, and for purposes in connexion therewith.

[16th August 1920.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Continuation  
of office of  
Food Con-  
troller.  
6 & 7 Geo. 5.  
c. 68.

1.—(1) Subject to the provisions of this Act, the provisions of the New Ministries and Secretaries Act, 1916, so far as they relate to the Food Controller or the Ministry of Food, shall, notwithstanding anything in that or any other Act, continue in force until the first day of September, nineteen hundred and twenty-two :

Provided that—

- (a) the purposes of the Ministry of Food shall, in lieu of the purposes specified in section three of the New Ministries and Secretaries Act, 1916, or in any other provisions relating to the purposes for or in relation to which any of the powers of the Food Controller may be exercised, be the maintenance and augmentation of the food supply of the country, and the regulation in the public interest of the treatment, distribution, and prices of food ; and

- (b) nothing in this section shall be deemed to continue any power of making regulations under the Defence of the Realm (Consolidation) Act, 1914.

Geo. 5. c. 8.

(2) The Food Controller shall, after the passing of this Act during the continuance of his office, have and exercise all the powers possessed by him, at the time of the passing of this Act, under the regulations referred to in the Schedule to this